

(Opposition, p. 5:18-20)

The Court finds that Dolly Ryan’s prior stage 4 cancer diagnosis and its past recurrence, the fact that she is frail, uses a walker, has a history of falling, has issues such as osteopenia and dyslipidemia, hypertension, and impaired fasting glucose, has a risk of a stroke, heart attack, or other cardiac event, and even her very advanced age of 95, when viewed together, support granting Plaintiffs’ Motion for Preference. As cited by Defendants, when “advanced age or serious medical problems” mean that a party “might die or become incapacitated before their case comes to trial,” it is appropriate to grant a motion for preference. (*Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 533, fn. 12.) “There can be little argument that section 36 was enacted for the purpose of that an *aged or terminally ill* plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted. Such a preference is not only necessary to assure a party’s peace of mind that he or she will live to see a particular dispute brought to resolution but it can also have substantive consequences. The party’s presence and ability to testify in person and/or assist counsel may be critical to success. In addition, the nature of the ultimate recovery can be adversely affected by a plaintiff’s death prior to judgment.” (*Id.* at p. 532, italics added.)

Ruling

For the reasons discussed above, the Court **GRANTS** Plaintiffs’ motion for preference. Counsel should appear (Zoom okay) to discuss scheduling and possible trial dates, as well as intervening ADR.

13. 9:00 AM CASE NUMBER: C25-03308
CASE NAME: RAMONA FICKES VS. GHC OF WALNUT CREEK, LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GHC OF WALNUT CREEK, LLC
TENTATIVE RULING:

Before the Court is a petition to compel arbitration, filed by defendants GHC of Walnut Creek, LLC, dba Walnut Creek Skilled Nursing and Rehabilitation Center; Life Generations Healthcare, LLC; and Thomas Olds, Jr.

For the reasons set forth below, the Court **denies** the Petition.

Background

Ramona May-Fickes entered into the care of Walnut Creek Skilled Nursing and Rehabilitation Center on August 8, 2024. (Complaint, ¶ 22.) Ramona’s admission forms and arbitration agreement were completed and executed by her nephew, plaintiff Ronald Laurence. (Videon Decl. ISO Petition, ¶ 3.) These were given to him on August 12, 2024, and returned on August 31, 2024. (*Ibid.*)

Plaintiffs allege that around early October 2024, when outside hospice care ceased, the care for Ramona deteriorated. (Complaint, ¶¶ 23-25.) On November 13, 2024, staff at the skilled nursing center noticed a discoloration on Ramona’s right leg that they referred to as a rash. (*Id.* at ¶ 29.) On November 19, 2024, Ramona’s family withdrew her from the skilled nursing facility and took her to an emergency room, where she was diagnosed with ischemic pain in her right foot and critical limb ischemia of the lower right extremity. (*Id.* at ¶¶ 31-34.) She was admitted to the hospital that same day and on November 27, 2024, the hospital discharged her to her home with hospice care, and she passed away at home on January 24, 2025. (*Id.* at ¶¶ 35-39.)

On November 12, 2025, the operative complaint in this matter was filed (the “Complaint”). It alleges claims on behalf of Ramona May Fickes, Ronald Laurence (Ramona’s nephew), and Dolly Ryan (Ramona’s sister). Ronald Laurence is pursuing the claims belonging to the decedent, Ramona May Fickes, as her successor-in-interest. The Complaint alleges causes of action for: (1) elder neglect; (2) elder neglect [enhance remedies]; (3) negligence; (4) fraud [constructive]; (5) tort per se [Penal Code § 368]; (6) intentional infliction of emotional distress; (7) violation of the Patient’s Bill of Rights; and (8) wrongful death. Of those claims, the only one being pursued by Ronald Laurence and Dolly Ryan, in their individual capacities, is the wrongful death claim. All other claims are being pursued on Ramona’s behalf by Ronald Laurence.

Legal Standard

“Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-94; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-20.) California law determines the answer to this threshold question. (*Ibid.*) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid.*, see also Civ. Code, §§ 1550, 1580, 1565.) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Ibid.*; see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

Analysis

Defendants argue that the arbitration agreement in this matter should be enforced because it was executed by plaintiff Ronald Laurence on behalf of himself and Ramona, due to a power of attorney. (Petition, pp. 5-6.) Defendants further argue that arbitration should be ordered here because the agreement clearly applies to the dispute in question. (*Id.* at pp. 6-7.) Finally, Defendants argue that this action, including discovery, is to be stayed pending resolution of the Petition. (*Id.* at p. 7.)

In opposition, Plaintiffs argue that Defendants misstate the law regarding the purported policy favoring arbitration as it should be treated similar to evaluation of any other contract. (MPA ISO Opposition, p. 5.) They also argue that Defendants have not shown a valid agreement to arbitrate for Ramona Fickes due to their being no valid power of attorney (“POA”) at the time Ronald Laurence signed. (*Id.* at pp. 5-7.) Further, Plaintiffs assert Ronald Laurence had no ostensible authority to bind Ramona Fickes. (*Id.* at pp. 7-8.) Plaintiffs argue that the Petition should also be denied because the agreement is unconscionable. (*Id.* at pp. 9-13.) Plaintiffs additionally argue that the Court should deny Petition due to Code of Civil Procedure § 1281.2, in light of Ronald Laurence and Dolly Ryan’s claims not being subject to arbitration and that Ronald Laurence did not sign in his individual capacity. (*Id.* at pp. 13-18.)

On reply, Defendants argue that the POA was valid and that Ronald Laurence is bound arbitrate his wrongful death claim. (Reply, pp. 7-9.) They further argue that the arbitration agreement is not

unconscionable—procedurally or substantively. (*Id.* at pp. 9-15.) Finally, they argue that the Court lacks discretion to invoke CCP § 1281.2(c), to deny arbitration and that the Court should stay any portion of the matter that is not compelled to arbitration. (*Id.* at pp. 15-18.)

“Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, (2012) 55 Cal.4th 223, 236.)

Dolly Ryan

With respect to Dolly Ryan’s wrongful death claim against Defendants, Defendants do not state that she has signed any sort of arbitration agreement or that anyone has signed one on her behalf. Thus, Defendants have not met their burden of showing the existence of an arbitration agreement between Dolly Ryan and Defendants. The Petition to compel arbitration will be DENIED with respect to plaintiff Dolly Ryan.

Ramona May Fickes

Here, the arbitration agreement for Ramona May Fickes was signed by her nephew Ronald Laurence. (Kevin Eng Decl., ¶ 2, Exh. B.) His authority to sign on behalf of his aunt comes from a POA that Romona May Fickes signed that gave Ronald such authority as a POA is required in situations like this where a relative signs on behalf of an elderly relative for the sort of care at issue here. However, the POW is a Springing Durable Power of Attorney, and it states that the POA does not “become effective” until her “incapacity.” (Kevin Eng Decl., ¶ 2, Exh. B. p. 1.) The determination of incapacity is governed by clause 2, and states that:

The determination of whether I have become incapacitated or disabled so that I am not able to manage my financial affairs shall be made in writing by one licensed physician. In the event that a licensed physician has made a written determination that I have become incapacitated or disabled and am not able to manage my own financial affairs, the written statement shall be attached to the original of this durable power of attorney.

(Kevin Eng Decl., ¶ 2, Exh. B, clause 2.)

Here, there appears to be no such determination to have been made, as the POA attached to the declaration of Kevin Eng and provided to this Court does not have such a physician’s statement attached to it and Defendants further do not state that any such determination was made. Instead, they offer some notes made by non-physicians that relate to “dementia” and “chronic intermittent confusion,” which appear to come from an LVN. Notably, these notes do not address what the POA requires, which is “a written determination that [Ramona May Fickes] [has] become incapacitated or disabled and am not able to manage my own financial affairs. . .” (Kevin Eng Decl., ¶ 2, Exh. B. p. 1.) Having dementia or chronic intermittent confusion as noted by a licensed vocational nurse does not satisfy a requirement that a *physician make a written determination* that one has become “incapacitated” or “disabled” and is “unable to manage” their own financial affairs.

Defendants are aware of the importance of the POA in binding Ramona May Fickes to a document

signed by Ronald Laurence, as they have provided it, authenticated it, and offered arguments as to why the POA without the physician's written statement attached is sufficient. However, the Court concludes that based on the above, Defendants have not met their burden of showing a binding contract between Ramona May Fickes and Defendants because the POA they have provided is insufficient for Ronald to bind Ramona without Defendants being able to show that the effective date of the POA was triggered at the time Ronald executed it. The Petition to compel arbitration will be DENIED with respect to the claims of Ramona May Fickes.

Ronald Laurence

With respect to Ronald Laurence, Defendants assert that he is bound to arbitrate the wrongful death claim asserted by him in his individual capacity because the arbitration agreement he signed on behalf of Ramona May Fickes, which was not valid due to the POA having not yet spring, also contained a clause stating that:

This Agreement shall be binding for any dispute, except for disputes pertaining to collections or evictions brought by the parties hereto. This Agreement is binding on all parties, including the Resident's representatives, executors, family members and heirs. *The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the 'Resident Representative/Agent Signature' line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by the Resident's representatives, agents, executors, family members, successors in interest and heirs are subject to binding arbitration.* This Agreement may be rescinded by written notice within thirty (30) days of signature."

(Sharon Videion Decl., ¶ 3, Exh. A, Article 4.)

Here, the Court need not address in detail the existence of an arbitration agreement between Defendants and Ronald Laurence because even assuming arguendo that there is an agreement, there is a problem with Defendants' Petition here.

Plaintiffs cite *Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311, to support their argument that Ronald Laurence's wrongful death claims are not arbitrable and are unconscionable. (MPA ISO Opposition, pp. 12:17-26, 15:10-12.) That case dealt with the *exact same arbitration clause that is at issue here* and the court of appeal there, in a published opinion binding on this Superior Court, affirmed that the arbitration agreement was unenforceable due to being procedurally and substantively unconscionable. (*Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311, 320-22, fn. 2 [clause 4 is verbatim the same in the agreement here as in the agreement in *Lopez*].) Every issue the *Lopez* Court identified with the agreement in that case is present with the agreement in this case. (*Ibid.*) In addition to both having an identical article 4, it appears that the arbitration agreement in *Lopez* is entirely the same as the one in the present case ("a two-page document entitled 'RESIDENT-FACILITY ARBITRATION AGREEMENT. . . the arbitration agreement itself is only two pages and has 'bold font and red ink. . .' signature block designated 'Resident Representative/Agent Signature . . .'" Article two requiring arbitration for "any action for injury or death arising from negligence, intentional tort and/or statutory causes of action") (*Id.* at 311-322 [Interestingly, the law firm representing Defendants in this instant matter also represented the Defendants in *Lopez*.]) Thus, all

of the reasoning in *Lopez* applies equally to the instant matter currently before this Court.

The agreement is procedurally unconscionable because the agreement did not identify Ronald Laurence as being a party to the agreement and Article Four, which requires Ronald to arbitrate all claims in his individual capacity, was inserted into the arbitration agreement without headings or highlighting. (*Lopez, supra*, 39 Cal.App.5th at pp. 320-321, fn. 2; Kevin Eng. Decl., ¶ 2, Exh. B.) For substantive unconscionability, the agreement lacks mutuality “because it requires residents to arbitrate those claims they are most likely to bring against the Facility (medical malpractice, personal injury, elder abuse) while allowing the Facility to pursue in court the actions the Facility is most likely to bring against residents (evictions and collections).” (*Lopez, supra*, 39 Cal.App.5th at p. 321; Kevin Eng. Decl., ¶ 2, Exh. B.) The agreement in this matter contains every flaw that the *Lopez* Court identified. (*Lopez, supra*, 39 Cal.App.5th at p. 321, fn. 2; Kevin Eng. Decl., ¶ 2, Exh. B.) With a published and binding Court of Appeal decision precisely on point, this Court is required to rule in accordance with this binding authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455 [“Under the doctrine of stare decisis, all tribunals exercising inferior jurisdiction are required to follow decisions of courts exercising superior jurisdiction. Otherwise, the doctrine of stare decisis makes no sense. The decisions of this court are binding upon and must be followed by all the state courts of California. Decisions of every division of the District Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction. It is not their function to attempt to overrule decisions of a higher court.”].)

The Opposition offers argument on *Lopez* in multiple places and although Defendants’ reply brief spends seven pages on unconscionability it does not cite, address, or offer argument on *Lopez v Bartlett Care Center* (2019) 39 Cal.App.5th 311. (MPA ISO Opposition, pp. 12:17-26, 15:10-12; Reply, pp. 9-15.)

Ruling

For the reasons discussed above, the Court **DENIES** Defendants’ Petition to Compel Arbitration.

14. 9:00 AM CASE NUMBER: C25-03772
CASE NAME: RECLAMATION DISTRICT NO. 800 VS. ALL PERSONS INTERESTED IN THE MATTER OF THE BENEFIT ASSESSMENT ADOPTED PURSUANT TO RESOLUTION NO. 25-13
HEARING IN RE: COMPLAINT FOR VALIDATION
FILED BY: RECLAMATION DISTRICT NO. 800
TENTATIVE RULING:

This is an action to validate a special benefit assessment by a public agency under Code of Civil Procedure §§ 860 to 870.5. The action and summons were properly published in accordance with § 861. No one has appeared to oppose validation, and default was entered.

Accordingly, **judgment will be granted** in favor of the plaintiff.

15. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION